

BEFORE THE HONOURABLE JUDICIAL FIRST CLASS MAGISTRATE COURT 2
ATTINGAL

O.P (M.V.) No. _____ of 2025

BETWEEN

SHEMI S A, aged 47 years
D/o Aboobackerkunju
BISMI, CRPF Camp, Pallipuram P.O
Thiruvananthapuram
... Applicant

(Applicant is the mother of the deceased person)

All notices and process to the Applicant may be served on her Counsels:
M. Althaf, Advocate and Mohammed Anoop, Advocate
Attingal, Thiruvananthapuram – 695101

AND

RESPONDENTS

1. Jayan V C, S/o Chidambaran
Valiyathura, Kodamthuruthu
Alappuzha, Kerala – 688533
... Driver of the KSRTC Swift Superfast vehicle bearing Regn. No: KL-15A-2651

2. The Chairman & Managing Director
KSRTC SWIFT Ltd.
Survey No: 1889, TC 91/268(1)
Kadakampally Village, Anayara
Thiruvananthapuram – 695029
... Owner of the vehicle

3. The Oriental Insurance Company Ltd.
A-25/27, Asaf Ali Road
New Delhi – 110002
... Insurance Company of the KSRTC

All notices and processes to the Respondents may be served on the above addresses.

APPLICATION FOR COMPENSATION

(Application filed Under Section 166(1) and 140 of Motor Vehicles Act, 1988)

I, SHEMI S A, D/o Aboobackerkunju, BISMI, CRPF Camp, Pallipuram P.O,
Thiruvananthapuram, do hereby apply for the grant of Compensation for the death of her
son, M. Ashik, in a motor vehicle accident.

Necessary particulars in respect of the deceased, the vehicle etc. are given below:

S.No	Particulars	Details
1.	Name and father's name of the person deceased	M. Ashik S/o Hafis A
2.	Full address of the person deceased	BISMI, CRPF Camp, Pallipuram P.O, Thiruvananthapuram
3.	Age and date of birth of the person deceased (To be supported by documentary evidence, if available)	23 years, 06/06/2002 Photocopy of Aadhaar Card produced (7207 3788 3968)
4.	Occupation of the person deceased	Student
5.	Name and address of the employer of the person deceased	-
6.	Monthly income of the person deceased	-
7.	Does the person in respect of whom compensation is claimed pay income tax? If so, state the amount of income tax (to be supported by documentary evidence)	No
8.	Place, date and time of the accident	The accident took place at Pallipuram Thamarakulam near Petrol Pump on 08/05/2025 at 12:15 a.m.
9.	Name and address of the Police Station in whose jurisdiction the accident took place or was registered	Mangalapuram Police Station, Crime No. 564/2025

10.	Was the person in respect of whom compensation is claimed travelling in or by the vehicles involved in the accident? If so, give the names of places of starting of journey and destination	Yes, the deceased was riding the Motor Cycle bearing Reg. No. KL-01-CD-4381 along the Pallipuram - Kazhakootam road
11.	Nature of injuries sustained	Died due to the multiple injuries sustained in the accident
12.	Name and address of the Medical Officer/Practitioner if any who attended on the injured	Dr. Salnalal, Medical Officer, Dept. of Forensic Medicine, Govt. Medical College Hospital, Thiruvananthapuram
13.	Period of treatment and expenditure, if any incurred thereon (to be supported by documentary evidence)	From the place of accident the deceased was taken to Govt. Medical College, Thiruvananthapuram. After reached hospital, the doctor found and confirmed death due to multiple injuries
14.	Disability for work, if any caused	Since this is a case of death, not applicable
15.	Registration No. and type of the vehicle involved by the accident	1. KL-15A-2651 KSRTC SWIFT 375 2. KL-01-CD-4381 MOTOR CYCLE
16.	Name and address of the owner of the vehicle	1. The Chairman MD, KSRTC SWIFT Ltd., Survey No: 1889, TC 91/268(1), Kadakampally Village, Anayara, Thiruvananthapuram – 695029 2. M. Ashik, BISMI, CRPF Camp, Pallipuram P.O, Thiruvananthapuram
17.	Name and address of the insurer of the vehicle	1. The Oriental Insurance Company Ltd., A-25/27, Asaf Ali Road, New Delhi – 110002 2. The New India Assurance Co. Ltd.

18.	Policy particulars of the vehicle or vehicles involved if available	1. The Oriental Insurance Company Ltd., A-25/27, Asaf Ali Road, New Delhi – 110002, Policy No. 441200/31/2025/9290, Validity date: _____ 2. The New India Assurance Co. Ltd., Policy No. 76190431230200029747, Valid date: _____
19.	Name and address of the driver of the vehicle	Jayan V C, S/o Chidambaran, Valiyathura, Kodamthuruthu, Alappuzha, Kerala – 688533
20.	Details of driving licence of driver or drivers of the vehicle or the vehicles involved, if available	1. Jayan V C, S/o Chidambaran, Valiyathura, Kodamthuruthu, Alappuzha, Kerala – 688533, MDL No. KL-32 1997000088, Valid from 03/08/2025 to 09/03/2029 2. M. Ashik, BISMI, CRPF CAMP, Pallipuram P.O, Thiruvananthapuram, MDL No. KL-22 20210001302, Valid from 18/01/2021 to 05/06/2042
21.	Has any claim been lodged with the owner or insurer? If so, with what result?	No
22.	Has any other claim been lodged in any other forum in respect of the same cause of action? If so, with what result	No
23.	Name and address of the applicant	SHEMI S A, aged 47 years, D/o Aboobackerkunj, BISMI, CRPF Camp, Pallipuram P.O, Thiruvananthapuram
24.	Relationship with the applicant	Applicant is the mother of the deceased person
25.	Title to the property of the deceased	Not applicable
26.	Amount of compensation claimed	Rs. _____

27.	Particulars of loss and expenses	Stated in Part I & Part II of Column No. 28
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28. Other particulars, if any, which the applicant wishes to give:

PART – I

Head	Amount (Rs.)
a) Loss of earnings	_____
b) Partial loss of earnings	_____
c) Transport to hospital	_____
d) Extra nourishment	_____
e) Damages to clothings and other articles	_____
f) Others: i) Medicine cum treatment ii) Funeral Expenses	
Total of Part I	_____

PART – II

Head	Amount (Rs.)
g) Compensation for pain and sufferings	_____ –
h) Compensation for continuing or permanent disability, if any	_____ –
i) Compensation for the loss of dependency	_____ –
j) Compensation for mental shock, shortened expectation in life, loss of amenities in life etc.	_____ –
Total of Part II	_____ –

Total of Part I and II	Rs. _____
(The claim is limited to Rs. _____)	

S.No	Particulars	Details
29.	Whether the injured had been involved in any other road accident earlier (If so state details)	No

30.	Whether any application has been preferred by any other legal heirs on the same claim? If so, state details	No
31.	Has any application been filed by any other injured in respect of the same accident? If so, state details, if available	No

32. Any other information that may be necessary or helpful in disposal of the claim:

The accident occurred on 08/05/2025 at around 12:15 a.m. The place of accident was near Thamarakulam Petrol Pump in Thiruvananthapuram - Pallipuram Road. The deceased was riding the Motor Cycle bearing Reg. No. KL-01-CD-4381 from Pallipuram side to Kazhakootam side in a moderate speed and obeying all traffic rules. When the deceased reached at the place of accident, a KSRTC SWIFT SUPERFAST bearing Reg. No. KL-15A-2651 (KS 375) came from the opposite direction driven by its driver in a rash and negligent manner violating the rules of ONEWAY so as to endanger human life without obeying any traffic rule and at high speed hit the Motor Cycle in which the deceased was riding. Due to the said impact the deceased sustained multiple injuries. From the place of accident the deceased was taken to Govt. Medical Hospital, Thiruvananthapuram. After reached hospital, the doctor found and confirmed death due to multiple injuries.

The deceased was aged 23 years at the time of accident and was having good health. He is a student. He was the only earning member of the family. The sudden and unexpected death of the deceased inflicted a great shock to the family. His family is having the precedence of longevity. The applicant had lost the love and affection of the deceased forever. His Mother had lost her Son forever. His minor siblings had lost the care of their brother forever. The entire family is forced to lead a hard and sorrowful life.

The accident had occurred purely due to the rash and negligent act of the driver of the KSRTC SWIFT SUPERFAST (KS375) bearing Reg. No. KL-15A-2651. There is no negligence on the part of the deceased. Hence the applicant is entitled to get compensation. They are to be compensated by the respondents jointly and severally being the Owner, driver and insurer of the KSRTC SWIFT SUPERFAST (KS375).

I shall produce Bank Pass Book with IFSC Code at the time of trial.

I wish to make a claim for compensation Under Section 140 and also in pursuance of the right on the principle of fault.

VALUATION AND COURT FEES

The Compensation Claim is valued at Rs. _____ and a court fee of Rs. _____ is to be paid Under Rule 397(1) of the Kerala Motor Vehicle Rules 1989 and legal benefit fund fee is Rs. _____ under Section 76(2) of Kerala Court Fees and Suit Valuation Act 1959. Since the applicant is having no means she is filing a petition for exemption.

Dated this the ____ day of October 2025

Advocate

VERIFICATION

I, Shemi S A, do hereby declare that the particulars given above are true and correct to the best of my knowledge, belief and information.

Place: Attingal
Date: _____

Signature of Applicant: _____

DOCUMENTS PRODUCED:

- 1. Copy of Aadhaar Cards
- 2. Photocopy of FIR
- 3. Copy of death certificate
- 4. Copy of postmortem report

Advocate

AFFIDAVIT OF THE APPLICANT

BEFORE THE HONOURABLE JUDICIAL FIRST CLASS MAGISTRATE COURT 2, ATTINGAL

O.P (M.V.) No. _____ of 2025

BETWEEN

SHEMI S A ... Applicant

AND

JAYAN AND OTHERS ... Respondents

AFFIDAVIT

I, SHEMI S A, aged 47 years, D/o Aboobacker Kunju, residing at BISMI, CRPF CAMP, Pallipuram P.O, Thiruvananthapuram, Kerala – 695316, do hereby solemnly affirm and state as follows:

- 1. I am the Applicant in this Original Petition, which is for compensation filed Under Section 166(1) and 140 of Motor Vehicles Act, 1988 in the accident dated on 08/05/2025. I am swearing this affidavit.
- 2. All the particulars given in Column No. 1 to 32 and all statements given in the Original Petition are true and correct.
- 3. No claim was preferred by me previously with respect to the same cause of action of this Original Petition before any Court or Tribunal. This is the only application for compensation filed by me for getting compensation in the accident. He was not involved in any road traffic accident earlier.
- 4. Duly attested photograph of applicant has been affixed in this Original Petition in proof of the identity as required in S. 7(2)(C) of the Claims Tribunal Agreed Procedure and as per the direction contained in SLP (C) Nos. 11801-11804/2005.
- 5. That the investigation officer concerned in Crime No. 564/2025 of Mangalapuram Police Station with respect to the case registered in the accident has not served to the applicant in Form No. C and Form D as required in S. 7(2)(C) of the Claim Tribunal Agreed Procedure. It was not served to me so far and hence I am not able to produce the same along with the Original Petition.
- 6. All the averments in this Original Petition may be treated as part and parcel of this affidavit.
- 7. What is stated in this Original Petition is true and correct and I have not concealed anything from this Honourable Court.

What are stated above are true and correct to the best of my knowledge, belief and information.

Dated, this the ____ day of October, 2025

Deponent

Solemnly affirmed and signed before me by the deponent, whom I know personally on this the ____ day of October 2025 at my office at Attingal.

Advocate

Filed on: _____

**I.A. FOR EXEMPTION FROM PAYMENT OF
PRESCRIBED COURT FEES**

BEFORE THE HONOURABLE JUDICIAL FIRST CLASS MAGISTRATE COURT 2, ATTINGAL

I.A. No. _____ of 2025

IN

O.P (M.V.) No. _____ of 2025

Petitioner/Applicant:

SHEMI S A, aged 47 years
D/o Aboobacker Kunju
BISMI, CRPF CAMP, Pallipuram P.O
Thiruvananthapuram, Kerala – 695316

Counter Petitioners/Respondents:

- 1. Jayan V C, S/o Chidambaran, Valiyathura, Kodamthuruthu, Alappuzha, Kerala – 688533
- 2. The Chairman & Managing Director, KSRTC SWIFT Ltd., Survey No: 1889, TC 91/268(1), Kadakampally Village, Anayara, Thiruvananthapuram – 695029
- 3. The Oriental Insurance Company Ltd., A-25/27, Asaf Ali Road, New Delhi – 110002

Petition filed by M. Althaf and Mohammed Anoop, Advocates, Attingal, Thiruvananthapuram, for and on behalf of the Petitioner/Applicant Under Rule 397(2) of the Kerala Motor Vehicle Rules 1989 and Suit Valuation Act 1959.

For the reasons stated in the accompanying affidavit, it is most humbly prayed that this Honourable Court may be pleased to exempt the Petitioner from the payment of prescribed Court fees and legal benefit fund fee for the time being and admit this application into file.

Dated this the ____ day of October, 2025.

Advocate

**PETITION FOR EXEMPTION FROM PAYMENT OF PRESCRIBED
COURT FEES**

Petition Fees: Rs. 60/-

M. Althaf
Advocate
Attingal

AFFIDAVIT (Court Fee Exemption)

I, SHEMI S A, aged 47 years, D/o Aboobacker Kunju, residing at BISMI, CRPF CAMP, Pallipuram P.O, Thiruvananthapuram, Kerala – 695316, do hereby solemnly affirm and state as follows:

- 1. I am the Applicant in this case.
- 2. I have filed an application for granting Compensation of Rs. _____ for the death of my Son in a Motor Vehicle Accident.
- 3. Court fees prescribed for the same is Rs. _____ and fee for legal benefit fund is Rs. _____.
- 4. I have no employment or property income and I am not in a position to remit the requisite court fees.
- 5. As I have no means to remit the requisite Court fees and legal benefit fund fee, I may be exempted from the payment of prescribed Court fees Under Rule 397(2) of the Kerala Motor Vehicles Rules, 1989 and legal benefit fund fee under Section 76(2) of Kerala Court Fees and Suit Valuation Act 1959 for the time being.
- 6. A separate petition to this effect is also filed herewith, which may be allowed.

All the facts stated above are true and correct to the best of my knowledge, belief and information.

Dated, this the ____ day of October, 2025.

Deponent

Solemnly affirmed and signed before me by the deponent, whom I know personally on this the ____ day of October, 2025 at my office at Attingal.

Advocate

I.A. TO ADMIT O.P WITHOUT LEGAL HEIRSHIP CERTIFICATE

BEFORE THE HONOURABLE JUDICIAL FIRST CLASS MAGISTRATE COURT 2, ATTINGAL

I.A. No. _____ of 2025

IN

O.P (M.V.) No. _____ of 2025

Petitioner:

SHEMI S A, aged 47 years
D/o Aboobacker Kunju
BISMI, CRPF CAMP, Pallipuram P.O
Thiruvananthapuram, Kerala – 695316

Respondents:

- 1. Jayan V C, S/o Chidambaran, Valiyathura, Kodamthuruthu, Alappuzha, Kerala – 688533
- 2. The Chairman & Managing Director, KSRTC SWIFT Ltd., Survey No: 1889, TC 91/268(1), Kadakampally Village, Anayara, Thiruvananthapuram – 695029
- 3. The Oriental Insurance Company Ltd., A-25/27, Asaf Ali Road, New Delhi – 110002

Petition filed by M. Althaf and Mohammed Anoop M, Advocates, Attingal, for and on behalf of the Petitioner/Applicant Under Section 151 of C.P.C.

For the reasons stated in the accompanying affidavit, it is most humbly prayed that this Honourable Court may be pleased to admit the original petition without legal heirship.

Dated, this the ____ day of October, 2025

Advocate

**PETITION TO ALLOW TIME FOR PRODUCING LEGAL HEIRSHIP
CERTIFICATE**

Petition Fees: Rs. 60/-

M. Althaf
Advocate
Attingal

AFFIDAVIT (Legal Heirship)

I, SHEMI S A, aged 47 years, D/o Aboobacker Kunju, residing at BISMI, CRPF CAMP, Pallipuram P.O, Thiruvananthapuram, Kerala – 695316, do hereby solemnly affirm and state as follows:

- 1. I am the Applicant in this case.
- 2. This Original Petition is filed for getting compensation for the death of my son in a motor vehicle accident.
- 3. I had already applied for legal heirship certificate. At this stage I am unable to produce the Legal heirship because the same is not received from Office. The copies of the same will be produced as and when it is received.
- 4. Hence, it has become highly necessary for me to apply before this Honourable Court to admit the original petition without producing legal heirship.
- 5. A separate Petition is filed herewith for the said purpose which this Honourable Court may be pleased to allow.

All the facts stated above are true and correct to the best of my knowledge, belief and information.

Dated, this the ____ day of October, 2025.

Deponent

Solemnly affirmed and signed before me by the deponent, whom I know personally on this the ____ day of October, 2025 at my office at Attingal.

Advocate

**I.A. FOR TIME TO PRODUCE BANK ACCOUNT
DETAILS**

BEFORE THE HONOURABLE JUDICIAL FIRST CLASS MAGISTRATE COURT 2, ATTINGAL

I.A. No. _____ of 2025

IN

O.P (M.V.) No. _____ of 2025

Petitioner/Applicant:

SHEMI S A, aged 47 years
D/o Aboobacker Kunju
BISMI, CRPF CAMP, Pallipuram P.O
Thiruvananthapuram, Kerala – 695316

Respondents:

1. Jayan V C, S/o Chidambaran, Valiyathura, Kodamthuruthu, Alappuzha, Kerala – 688533
2. The Chairman & Managing Director, KSRTC SWIFT Ltd., Survey No: 1889, TC 91/268(1), Kadakampally Village, Anayara, Thiruvananthapuram – 695029
3. The Oriental Insurance Company Ltd., A-25/27, Asaf Ali Road, New Delhi – 110002

Petition filed by M. Althaf and Mohammed Anoop, Advocates, Attingal, Thiruvananthapuram, for and on behalf of the Petitioner/Applicant Under Section 151 of C.P.C.

For the reasons stated in the accompanying affidavit, it is most humbly prayed that this Honourable Court may be pleased to allow time for producing the Applicant's Bank Account details for the time being and admit this Original Petition into file.

Dated, this the ____ day of October, 2025

Advocate

PETITION FOR SEEKING TIME FOR PRODUCING BANK ACCOUNT DETAILS

Petition Fees: Rs. 30/-

M. Althaf
Advocate
Attingal

AFFIDAVIT (Bank Account)

I, Shemi S A, aged 47 years, D/o Aboobacker Kunju, residing at BISMI, CRPF CAMP, Pallipuram P.O, Thiruvananthapuram, Kerala – 695316, do hereby solemnly affirm and state as follows:

1. I am the Applicant in this case.
2. This Original Petition is filed for getting compensation for the death of my son in a motor vehicle accident.
3. Now I am unable to produce bank passbook, because I am not having regular bank transaction. It is understood that there is long delay in dispose my case. I shall furnish the bank account at the time of producing documents.
4. Hence, it has become highly necessary for me to apply before this Honourable Court seeking time for producing the Bank Account. Hence this original petition may be admitted to file without the same.
5. A separate Petition is also filed herewith for the said purpose which this Honourable Court may be pleased to allow.

All the facts stated above are true and correct to the best of my knowledge, belief and information.

Dated, this the ____ day of October, 2025.

Deponent

Solemnly affirmed and signed before me by the deponent, whom I know personally on this the ____ day of October, 2025 at my office at Attingal.

Advocate

THIRD PARTY AFFIDAVIT

BEFORE THE HONOURABLE JUDICIAL FIRST CLASS MAGISTRATE COURT 2, ATTINGAL

O.P (M.V.) No. _____ of 2025

BETWEEN

SHEMI S A ... Applicant

AND

JAYAN AND OTHERS ... Respondents

AFFIDAVIT

I, _____, aged ____ years, S/o/D/o _____, residing at _____, do hereby solemnly affirm and state as follows:

- 1. I am not a party in this case. I know the facts of this case and I am disinterested in the subject matter of this case.
- 2. This case is filed for getting compensation for the death of M. Ashik.
- 3. I know Shemi and her son M. Ashik very well.

What is stated above is true and correct to the best of my knowledge, belief and information.

Dated, this the ____ day of October, 2025

Deponent

Solemnly affirmed and signed before me by the deponent, whom I know personally on this the ____ day of October, 2025 at my office at Attingal.

Advocate

M. ALTHAF
ADVOCATE
ATTINGAL, THIRUVANANTHAPURAM